

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2024-5703 & 2025-8034

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JIMMY BOND, LICENSE NO. LPC 17249,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the “Board”) and Jimmy Bond (“Respondent”) as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).
2. Respondent was licensed to practice as a professional counselor (“LPC”) in the State of Colorado on June 18, 2021, having been issued license number LPC 17249, and is currently so licensed.
3. This Order is a full and final resolution of case numbers 2024-5703 and 2025-8034. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around June 2024, Respondent violated physical boundaries with a client.
 - b. Respondent purposefully failed to respond, in the manner required by the Board, to a complaint filed with or by the Board against the licensee.
 - c. On or around May and June 2025, Respondent underwent a mental status examination with Peer Assistance Services, Inc. (“PAS”) and a psychosexual evaluation. The evaluators concluded that Respondent is only safe to practice as a LPC with reasonable skill and safety with treatment and monitoring.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(g)(I) and (x), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

(x) Has failed to respond, in the manner required by the board, to a complaint filed with or by the board against the licensee, registrant, or certificate holder.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

SUSPENSION

7. Respondent's license to practice professional counseling shall be suspended for a period of six (6) months or until successful completion of PROBE, whichever occurs first, commencing on the effective date of this Order. The suspension shall continue until Respondent has met the conditions set forth in this Order for the lifting of the suspension.

8. During the suspension period, Respondent is prohibited from:

a. Engaging in or performing any act constituting the practice of professional counseling in the State of Colorado or holding himself out as a professional counselor in the State of Colorado; and

b. Engaging in or performing any act constituting the practice of professional counseling in any other state, territory, federal enclave, or military facility under the authority of Respondent's Colorado LPC license.

REQUEST TO LIFT SUSPENSION

9. The suspension of Respondent's license to practice professional counseling shall continue until:

- a. Respondent successfully completes the continuing education requirement as outlined in paragraph 11 of this Order;
- b. If requested, Respondent submits written proof satisfactory to the Board that Respondent is safe to resume practice as a professional counselor;
- c. Respondent formally requests in writing that the Board allow Respondent to resume the practice of professional counseling;
- d. The Board reviews Respondent's request and determines to grant Respondent's request to resume practice;
- e. The Board determines what additional terms, if any, are appropriate, for Respondent's return to practice and, if additional terms are necessary, a subsequent Order is executed by the parties specifying such terms; and
- f. Respondent receives written notification from the Board that he may resume practice as a professional counselor.

10. The decision concerning whether or not to lift the suspension and, if so, under what terms, shall rest exclusively in the discretion of the Board.

CONTINUING EDUCATION

11. Within one (1) year of the effective date of this Order, Respondent shall successfully complete the PROBE-Ethics and Boundaries Program (www.cpep.doc.org). To successfully complete the program, Respondent must receive a passing evaluation or grade, without any condition or qualification. Upon completion of the program, Respondent shall ensure that a certificate/letter of completion is provided to the Board. If Respondent fails to register for and successfully pass the PROBE program in Colorado within one (1) year of the effective date of this Order, Respondent must cease practice and agrees to suspension of his practice until he successfully passes the PROBE program.

12. These program hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

PROBATION

13. Once the Board grants Respondent's request to resume practice as a professional counselor and the suspension has been lifted, Respondent's license to practice as a professional counselor in the State of Colorado is hereby placed on

probation for three (3) years, commencing from the date Respondent is authorized to resume practice or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

14. For the first six (6) months following the lifting of the suspension, Respondent shall only provide teletherapy to clients and be monitored by a practice monitor. No in-person (face-to-face) sessions are allowed for the first six (6) months following the lifting of the suspension and until the practice monitor and the Board agrees to allow Respondent to resume in-person (face-to-face) sessions with clients.

15. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

16. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

17. If, after two (2) years of probation, Respondent has adhered to all terms and conditions of this Order, and in the event that Respondent's practice monitor agrees, Respondent may request termination of probation and the practice monitor requirement. Request for termination of probation and the practice monitor must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied the terms and conditions of practice monitoring and this Order. It is at the Board's discretion whether or not to approve Respondent's request to terminate probation and the practice monitoring requirement.

PRACTICE MONITOR

18. During the period of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, or within 30 days of the suspension being lifted, Respondent shall submit, in writing, three (3) proposed practice monitors for the Board's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

19. Respondent must have a practice monitor approved by the Board within 30 days of the effective date of this Order, or within 30 days of the suspension being lifted. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved unless an extension is granted by the Board.

20. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for practice monitoring is executed unless an extension is granted by the Board. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

21. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

22. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability, or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

23. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing as a professional counselor in accordance with generally accepted standards of practice and with skill and safety for his clients.

24. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first twelve (12) reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

25. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

26. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

27. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

28. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

TERMS AND CONDITIONS

29. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

30. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

31. All expenses incurred or necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

32. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

33. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

34. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

35. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

36. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

37. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

38. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any

provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

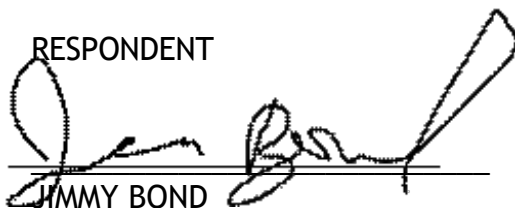
39. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

40. This Order shall be admissible as evidence at any hearing held before the Board.

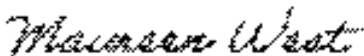
41. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


JIMMY BOND
LICENSE No. LPC 17249

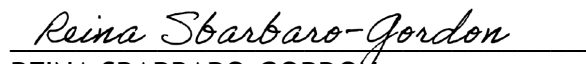
APPROVED AS TO FORM
FOR RESPONDENT



MAUREEN A. WEST
Maureen West & Associates, LLC

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 21st day of April,
2026.